



Write to the Editor

E-mail: editor@thinkdigit.com

Snail Mail: The Editor, Digit, D-222/2, Om Sagar Building, MIDC, TTC Industrial Estate, Nerul, Navi Mumbai 400 706

Digit will publish the best letters on these pages. Letters may be edited for clarity. **You must include your complete address in all communication.**

For subscription queries, call the Help Desk at 022-27629191/9200, Fax 022-27629224, or send an e-mail to help@jasubhai.com

Inbox

the time is ripe. The unwise keep waiting for a better offer that may never come!

Shalabh Agarwal
Lucknow

I am a student of class XII. I am reading this magazine for a long time now. I really like the contents. But I am unhappy with the price hike. Students like me who are interested in technology and are from a middle class family find it tough to shell out Rs 125 every month. Last month, when I saw the price, I thought of not buying it. But after a few days, I could not resist.

This magazine has become an essential commodity to serve the hunger of knowledge. Now that we are obliged to bow our heads to such blackmailing, I think we have the right to ask for something more. I think one (or more) page (s) could be added to deal with career guidance in this field for all students. I would also like to see some part-time jobs being offered for students.

Anindya Sadhu
Kolkata

I have been a reader of *Digit* ever since I came to India seven years ago. Now I am a subscriber and I wear the tag proudly. In fact, I have even bought a CD album to preserve the CD/DVDs I get every month.

A couple of things I wanted to say: why are people cribbing about a mere Rs 25 hike in the price? For crying out loud, it's just Rs 25. Even a litre of fuel costs more.

Thought number 2: you guys have the best sense of time and punctuality I have known ever since I came to India. Even when 'Mumbhai' went underworld (pun intended), you said, you would deliver your copies within the 15th and you did.

Matt
Bangalore

Dear Shalabh, Anindya and Matt, What can I say? Two of you support the price hike, while Anindya is opposed to it. One glaring difference here is that Shalabh and Matt are subscribers and hence, were not hit by the price hike. Anindya, I thank you for your unflinching support but the price hike was inevitable. Prices of raw materials and all other aspects involved have gone up and for the magazine to survive, we had to take this rather difficult decision.

All I can say is I hope we continue to have you with us. May I suggest going in for a subscription? It would bring down your per copy cost. On the whole, though, thank you all for your support and your suggestions have been noted and we will act on them ASAP.

—Editor

Is Backup Legal?

Recently, a senior citizen had written to *Digit* sharing his experience, which prompted me to write as well. I am sure that like me, many of your regular readers are senior citizens. I was working in the R&D department in a multinational prior to retirement.

I have been a regular reader of *Digit* since inception and a subscriber since March 2004. I am a very choosy person in every aspect of life and, therefore, my loyalty as a *Digit* reader over the years could not have been sustained without some powerful reasons—reasons that I regularly see in the words of other readers, month after month, in the “Inbox” column—words that I mostly agree with and am, therefore, not going to repeat.

As for the context of this letter, suffice to say that articles covering various IT-related technical as well as legal issues published in *Digit* have inspired me to raise a related issue that has not been addressed clearly so far. I am talking about the question of possible copyright violation by innocent PC enthusiasts trying to backup their collection of old audio/video material currently on media that are becoming obsolete and/or are fast deteriorating with age.

As for analogue to analogue backup of audio/video content, my understanding is that if one makes a single instance (backup) copy of a copyrighted material (that was legally procured), solely for one's own use and does not share the copy with anyone else (not to speak of selling!), or use it for any profit making purpose (public shows, for instance), there is no violation of any law. That is only the basic principle, however.

Possibly, that is exactly where the trouble lies! The law was simpler and straightforward in the analogue era. Things began to change with the advent of the digital era. For a common IT enthusiast, the situation is becoming progressively restrictive vis-à-vis the entertainment industry, particularly with the availability of mass-marketed DVD recorders and PVR solutions.

Although creating a backup of one's legally procured commercial software is still allowed, the right of the consumer to make a “backup copy” of his/her (commercial) DVD movie has been

successfully contested in the US apex court by the Hollywood studios recently, or so I heard. I have no problem with that, but what about an old-to-new trans-format backup? I have no clue!

Nobody talks clearly about the legality of backing up one's collection of analogue audio/video content to digital media, although suggestions (and even step-by-step instructions) for such activities abound in highly respected publications: “Rip Your Records: If you miss those tunes, here's the good news: You can easily make clean digital copies of them”, “So now you can easily backup to CDs all your treasured music on those old vinyls that you have held on to for so many years”, or something to that effect!

However, is such an activity strictly legal? The situation is even hazier for video. For example: “So where does that leave that pile of old VHS videocassettes you have up in the attic? Fortunately, converting your old tapes to digital form allows you to... output them to DVD, preserving them for the future”, so goes an article (Not in *Digit*).

That brings me to the issue of trans-format backup. I have a large collection of my favourite Indian music on LPs, EPs and analogue cassette tapes, and an even larger collection of video recordings on old VHS cassettes (movies as well as other programs of my interest), either on original, legally purchased cassettes, or recorded off the cable. Many of these audio/video contents are not available on digital media and many are not available in any format today.

My quandary is very obvious: Would it be a violation of existing copyright laws if I backup (to CDs and DVDs) any of the following from my collection: (1) Recorded from live broadcasts (2) (Legal editions) purchased from the open market?

If the answer to any of the above is “Yes that would be illegal”, does the answer change if such audio/video content is not available in the digital format, or is no longer available in the market in any format at all? Answering this may just help dispel the confusion among many other *Digit* readers too.

Subhendu Joardar
Via e-mail

LETTER
OF THE
MONTH